Fort Bend County District Court

Cause No. 2025-CV-0043

David Patterson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	July 11, 2025
Plaintiff's counsel:	Matthew Day, Kelly & Jones Law Group

PARTIES

Plaintiff David Patterson is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to transact insurance business in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage that applies to this claim.

FACTS

On November 11, 2024, Plaintiff was lawfully stopped in traffic in Baytown when a vehicle operated by an insured driver of Defendant's policyholder struck the rear of Plaintiff's vehicle at a substantial rate of speed. The impact pushed Plaintiff's vehicle forward and caused significant damage to the rear of the vehicle. Plaintiff reported the collision promptly, submitted a claim to Defendant, and provided all information and documentation Defendant requested. Defendant has not paid the claim in a manner that fairly compensates Plaintiff for losses resulting from the collision.

NEGLIGENCE

The at-fault driver owed a duty to Plaintiff to operate the vehicle with reasonable care, keep a proper lookout, maintain a safe follwoing distance, and control speed. That driver breacehd those duties. Defendant, as the insurer responsible for indemnifying its policyholder, is liable for the resulting damages to the extent provided by the policy and Texas law. Defendant also failed to evaluate the claim in good faith, failed to promptly and fairly settle a claim where liability was reasonably clear, and failed to provide a reasonable explanation for its handling of the claim, in violation of Chapter 541 and Chapter 542 of the Texas Insurance Code.

DAMAGES

As a direct result of the collision, Plaintiff suffered a concussion, with headaches, dizziness, light sensitivity, memory difficulty, and related symptoms. Plaintiff has incurred medical expenses, lost wages, and loss of earning capacity, and has endured physical pain, mental anguish, and impairment of daily life. These injuries are expected to continue. Plaintiff seeks actual damages, statutory damages, interest, attorney's fees, and costs, in an amount of $26,000.00.